

Consequentialism

Here we begin our extensive investigation into normative ethical theory, the area of philosophy that tries to identify the fundamental principles of morality. First up: **consequentialism**, a family of theories that places the emphasis on the consequences of our actions as the way to determine whether they are right or wrong.

A. THE NATURE OF CONSEQUENTIALISM

Consequentialism says that *an action is morally required just because it produces the best overall results*. Economists have coined a special word for this feature—being **optimific**. But how can we determine whether an act is optimific (i.e., whether it yields the best results)? It won't always be an easy thing to do in practice. But in theory, it's pretty straightforward. There are five steps to this process:

1. First, identify what is **intrinsically good**—valuable in and of itself, and worth having for its own sake. Familiar candidates include happiness, autonomy, knowledge, and virtue.
2. Next, identify what is intrinsically bad (i.e., bad all by itself). Examples might include physical pain, mental anguish, sadistic impulses, and the betrayal of innocents.
3. Then determine all of your options. Which actions are open to you at the moment?
4. For each option, determine the value of its results. How much of what is intrinsically good will each action bring about? How much of what is intrinsically bad?

5. Finally, pick the action that yields the greatest net balance of good over bad. That is the optimific choice. That is your moral duty. Doing anything else is immoral.

We can develop dozens of different versions of consequentialism, depending on which things we regard as intrinsically valuable. The many consequentialist alternatives include, for instance, views that state that acts are right if and only if they yield the greatest improvement in environmental health, or best advance the cause of world peace, or do more than any other action to increase the amount of knowledge in the world. Each of these is a version of consequentialism.

Thus consequentialism isn't just a single theory, but is rather a family of theories, united by their agreement that results are what matter in ethics. We can't discuss every member of the family here, so I will restrict my attention, for the most part, to its most prominent version—**act utilitarianism**.

According to act utilitarianism, well-being is the only thing that is intrinsically valuable. And faring poorly is the only thing that is intrinsically bad. Thus this view states that *an action is morally required if and only if it does more to improve overall well-being than any other action you could have done in the circumstances*. Philosophers call this ultimate moral standard the **principle of utility**. The focus, importantly, is on maximizing the *overall* amount of well-being in the world—not just yours, not just mine, but that of everyone affected by our actions. When we fail to maximize good results, we act wrongly, even if we had the best intentions. Though good

intentions may earn us praise, they are, according to utilitarians, irrelevant to an action's morality.

B. THE ATTRACTIONS OF UTILITARIANISM

Utilitarianism has garnered a lot of followers, not only among philosophers but also, especially, among economists and politicians. Let's consider some of its major selling points here, before turning our attention to some of its potential drawbacks.

Utilitarianism is a doctrine of impartiality, and this is one of its great strengths. It tells us that the welfare of each person is equally morally valuable. Whether rich or poor, white or black, male or female, religious or not, your well-being is just as important as anyone else's. Everyone's well-being counts, and everyone's well-being counts equally.

A second attraction is utilitarianism's ability to justify our basic moral beliefs. Consider the things we regard, deep down, as seriously immoral: slavery, rape, humiliating defenseless people, killing innocent victims. Each of these clearly tends to do more harm than good. Utilitarianism condemns such acts. So do we.

Now consider the things we strongly believe to be morally right: helping the poor, keeping promises, telling the truth, bravely facing danger. Such actions are highly beneficial. Utilitarianism commends them. So do we.

A third benefit of utilitarianism is its ability to provide advice about how to resolve moral conflicts. Because it has just a single ultimate rule—maximize well-being—it can offer concrete guidance where it is most needed.

Consider this familiar moral puzzle. I overhear some nasty gossip about my friend. She later asks me whether other people have been spreading rumors about her. I know that she is extremely sensitive, and that if I answer honestly, it will send her into a downward spiral for several days. I also know that the source of this gossip is someone who actually likes my friend, and was

acting impulsively and out of character. She's probably feeling bad about it already, and probably won't repeat this unkindness.

Of course, we need to know a lot more about the situation before we can be confident about a recommendation, but if we just stick with the details given here, the utilitarian will advise me not to reveal what I have heard. Honesty may be the best *policy*, but that doesn't mean that full disclosure is always called for. When we consider our options, utilitarians tell us to pick the one that increases overall well-being. Telling the truth won't always do that.

Utilitarianism is also a doctrine that provides great moral flexibility—a fourth benefit. For utilitarians, no moral rule (other than the principle of utility) is **absolute**. An absolute rule is one that is not to be violated under any conditions. According to utilitarianism, it is morally okay to violate any rule—even one that prohibits cannibalism, or torture, or the killing of innocents—if doing so will raise overall well-being.

Most of us think that moral rules must allow some exceptions. But where to draw the line? How do we know whether to follow a moral rule or to break it? Utilitarianism gives us an answer. Morality is not a free-for-all. It is not a case of "anything goes." We ordinarily do best when we obey the familiar moral rules (don't steal, lie, kill, etc.). But there are times when we must stray from the conventional path in order to improve overall welfare. When we do this, we do right—even if it means breaking the traditional moral rules.

A fifth benefit of utilitarianism is its insistence that every person is a member of the **moral community**. To be a member of the moral community is to be important in your own right. It is to be owed a certain amount of respect. Membership in the moral community imposes a duty on everyone else to take one's needs seriously, for one's own sake.

Importantly, utilitarians also argue that non-human animals are members of the moral community. The reasoning behind their inclusion is recorded in a famous slogan by the pioneering

utilitarian Jeremy Bentham (1748–1832): “the question is not, Can they *reason*? nor, Can they *talk*? but, Can they *suffer*?”¹ According to utilitarians, animals are important in their own right. Their importance does not depend on whether we happen to care about them. And the utilitarian explanation of this is very plausible: animals count because they can suffer.

Just to be clear, utilitarians allow that it is sometimes okay to harm members of the moral community. There are many cases in which maximizing overall well-being comes at a price. For instance, it may be acceptable to conduct certain intensely painful animal experiments, provided that they bring about very beneficial results. The point here is that, from the utilitarian perspective, we are not allowed to ignore the suffering of others. It doesn’t matter whether the victims are human beings or not.

C. SOME DIFFICULTIES FOR UTILITARIANISM

One problem for utilitarianism is that it seems like a very demanding theory, in two respects. A plausible moral theory is one that most of us can live by. But asking us to be constantly benevolent, never taking more than a moment or two for ourselves—how many of us can be so altruistic? If no one but a saint can meet its standards, then utilitarianism is in deep trouble.

Utilitarians would agree with this. They do *not* believe that we must always be strategizing about how to improve the world. The reason is simple. People motivated in this way usually fail to achieve their goal.

The idea is that those who are always trying to get the best outcome are often bound to miss it. This isn’t as strange as it sounds. Think of people whose sole purpose in life is to be as happy as they can be. Such people are rarely very happy. Constantly striving for this goal only makes it more elusive.

Utilitarians insist that we distinguish between a **decision procedure** and a **standard of rightness**. A decision procedure is just what it sounds like—a method for reliably guiding our decisions, so that when we use it well, we make decisions as we ought to. A standard of rightness tells us the conditions that make actions morally right.

Utilitarianism is, above all, a standard of rightness. It says that an action is right if and only if it is *optimific*. Importantly, a standard of rightness need not be a good decision procedure. Indeed, most consequentialists think that their standard of rightness—the principle of utility—fails as a decision procedure. Unless we find ourselves in very unusual circumstances, we should *not* be asking ourselves whether the act we are about to do is *optimific*.

The reasons given earlier explain this. Using the principle of utility as a decision procedure would probably *decrease* the amount of good we do in the world. That’s because we would probably spend too much time deliberating or second-guessing our motivations, thereby reducing our chances of doing good. Whenever that is so, utilitarians require that we use something other than the principle of utility to guide our deliberations and motivations.

But mightn’t utilitarianism demand too much of us in the way of self-sacrifice? Even if we needn’t always deliberate with an eye to doing what is *optimific*, and even if we needn’t always have a saint’s motivations, we really must act so as to achieve *optimific* results. Whenever we fail, we are behaving immorally. That is bound to strike most people as excessive.

It appears that a consistently utilitarian lifestyle would be one of great and constant self-sacrifice. Anytime you can do more good for others than you can for yourself, you are required to do so. If you are like most readers of this book—in no danger of starvation, able to afford a night out, a new pair of jeans, a vacation every so often—then utilitarianism calls on you to do a great deal more for others than you are probably doing.

1. Jeremy Bentham, *Introduction to the Principles of Morals and Legislation* (1781), ch. 17.

If I have a choice between spending \$1,000 on a beach vacation and sending that money to UNICEF (the United Nations Children's Fund), it's an easy call. UNICEF literature claims that \$1,000 can provide 100 families with a basic water kit for use during emergencies, immunize 1,000 children against polio, or provide enough woolen blankets to cover 250 children during winter-weather emergencies. I'd be unhappy if I had to give up my vacation. But my unhappiness pales in comparison to the suffering of those whose lives could be saved if I spent my money on them, rather than myself. If utilitarianism is correct, then no more vacations for me (or you, probably).

There is an important lesson here: utilitarianism cannot make room for **supererogation**—action that is “above and beyond the call of duty.” Such behavior is admirable and praiseworthy, but is not required. A classic case of supererogation is that of a bystander dashing into a burning building in order to rescue strangers trapped inside. Utilitarians must deny that even this is a case of supererogation, because they deny that *any* actions are above and beyond the call of duty. Our moral duty is to do the very best we can do. If, among all of the options available to you at the time, dashing into the building is going to minimize harm, then this is what you must do. Attempting the rescue isn't optional. It is your duty.

Another worry about utilitarianism, ironically, is its attachment to impartiality. The impartiality required by utilitarianism really is a substantial benefit of the theory. The happiness of a celebrity or a billionaire is no more important than that of a homeless person or a refugee. From the moral point of view, everyone counts equally; no one's interests are more important than anyone else's.

Yet there is also something worrying about impartiality, since morality sometimes seems to recommend *partiality*. It seems right, for instance, that I care about my children more than your children, that I care more for friends than

strangers, more for my fellow citizens than those living halfway around the world. And it also seems right to translate my care into action. If I have saved a bit of money, and it could either pay for my son's minor surgery or relieve the greater suffering of famine victims, most of us will think it at least permissible to pay the surgeon. But to do that is to be partial to the interests of my son. Utilitarianism does not allow that. It rejects the idea that a person, just because he is my son, my dear friend, or my fellow citizen, is more deserving of my help and attention.

Utilitarians can argue that there are many situations in which we should give preference to our near and dear—not because they deserve it or are more important than strangers, but because that is what is most beneficial. They could argue, for instance, that the results of sending my money overseas would actually be worse than relieving my son's suffering. Utilitarians will remind us that we must consider all consequences, not just short-term ones. If I were to sacrifice my son's interests so readily, he would feel hurt, and less secure in my love for him. These feelings are bad in themselves and would probably cause further harm in the long run. By contrast, famine victims who don't even know me won't feel slighted by my passing them over so that I can care for my son's needs. So if we take a sufficiently broad view of things, we can see that being partial to the interests of family and friends is usually optimistic after all.

This sort of reasoning is sometimes correct. When all is said and done, we often get better results when focusing on family, friends, and fellow citizens. But not always. After all, in the tale just told, the long-term result of my not sending famine aid is that some people actually die, whereas my son, though in pain and perhaps resentful of my sending the money abroad, would still be very much alive. From an impartial point of view, the death of famine victims is surely worse than my son's medical problems. When minimizing harm means giving one's time or money to strangers, utilitarianism

requires that we do so—even if that means sacrificing the important needs of friends and family.

This emphasis on impartiality leads to another problem. We are to count everyone's well-being equally. But suppose that nearly everyone in a society has a deep-seated prejudice against a small minority group. And suppose, further, that they use this prejudice to defend a policy of enslavement. Depending on the circumstances, it could be that utilitarianism *requires* slavery in this society.

When deciding the matter, we must take all of the harms to the slaves into account. But we must also consider the benefits to their oppressors. Everyone's interests count equally. Rich or poor, white or black, male or female. So far, so good. But also: ignorant or wise, just or unjust, kind or malicious—everyone's interests count, equally. If enough people are sufficiently mean and ignorant, then utilitarianism can require that we allow the sufferings they cause. Though such cases are not likely to occur that frequently, they can. And when they do, utilitarianism sides with the oppressors. That is a serious problem for any moral theory.

Perhaps the greatest problem for utilitarianism can be simply put: we must maximize well-being, but sometimes we can do this only by committing some serious injustice. Moral theories should not permit, much less require, that we act unjustly. Therefore, there is something deeply wrong about utilitarianism.

To do justice is to respect rights; to commit injustice is to violate rights. If it is ever *optimific* to violate rights, then utilitarianism requires us to do so.

Consider an example from wartime: **vicarious punishment**, which targets innocent people as a way to deter the guilty. Such a tactic often backfires. But it can sometimes be extremely effective. You might stop terrorists from their dirty work by abducting and threatening to torture their relatives. You might prevent guerilla attacks by killing the residents of the villages that shelter them. Though the

torture and deliberate killing of innocent civilians certainly infringes their rights, the utilitarian will require that it be done if it prevents even greater harm.

Cases of vicarious punishment are cases in which people do not deserve to be harmed. There are also many examples in which people do deserve some sort of penalty or punishment, but it is not *optimific* to give them their just deserts. Think of situations in which a student rightly receives a failing grade and appeals for a better one. Sometimes it really would be most beneficial to give the student the grade he wants, rather than the grade he has earned. Perhaps a job or a scholarship is on the line. If the benefits outweigh the costs, utilitarianism requires that the professor change the grade.

There are more serious cases. After World War II, US officials determined that it was beneficial to allow many Nazi scientists to escape punishment, so long as they agreed to share their weapons intelligence. Prosecutors sometimes let acknowledged murderers go free, if the killers testify against the crime bosses who once hired them. Political leaders with blood on their hands are often allowed to retire peacefully, so as to avoid the civil strife that would result were they prosecuted for their crimes. If utilitarianism is correct, then we must minimize harm—even if doing so means letting the guilty escape justice.

For as long as utilitarianism has been around, its fans have had to deal with the objection that it shortchanges justice. They have had ample time to develop replies. Let's consider these replies by framing each of them as a response to

The Argument from Injustice

1. The correct moral theory will never require us to commit serious injustices.
2. Utilitarianism sometimes requires us to commit serious injustices.
3. Therefore utilitarianism is not the correct moral theory.

There are four replies that are especially important. The first is that justice is also intrinsically valuable. It might sound puzzling, but those who make this first reply accept this argument in every respect. Utilitarianism cannot allow for the independent importance of justice, and that disqualifies it from being a good moral theory. Strictly speaking, then, utilitarianism is false. But if we make a small change to the doctrine, then all will be well.

A defining feature of utilitarianism is its view that well-being is the only thing that is intrinsically valuable. Suppose we amend that, and say that justice is also important in its own right. So we should maximize well-being *and* maximize justice in the world. That will solve the difficulty.

Or will it? If we are to maximize happiness and justice, what happens when we can't do both? Which should we give priority to?

We could say: always give priority to justice. But this isn't very plausible. Suppose that there has been gridlock in the state legislature. For months, lawmakers have been unable to pass a spending bill. Finally, a compromise package comes to the floor. If it doesn't get passed, there is no telling when another spending package will be voted on. In the meantime, government will shut down, and tens of thousands of people will not receive paychecks, medical assistance, or welfare support. Furthermore, the spending bill looks *terrific*. It solves a great number of the state's problems, gives aid to the neediest, and sponsors projects that will do genuine good for most communities. There is only one problem: it includes a clause that unfairly denies a small community the agricultural subsidies that the governor had promised it. Still, given the alternatives, a legislator should definitely vote for the spending bill, even though this means a minor injustice. As a general matter, if the stakes are extremely high, and the injustice very small, then it *may* be right to perpetrate injustice.

Rather than always giving priority to justice, we might instead always give priority to well-being. But then we are right back to the original theory, and so have made no progress in solving the problem of injustice.

What seems right to say is this: sometimes it's best to prefer well-being to justice, and sometimes not. But without any principle to sort this out, we don't really have a coherent theory at all.

In the face of this problem, some utilitarians opt for a second reply, and claim that injustice is never optimific. This amounts to denying premise 2. Those who favor this second reply say that if we carefully consider all of the results of unfair actions, we will see that those actions aren't really optimific. A policy of vicarious punishment, for instance, may work in the short run. But it will cause such anger among the target population that an even greater number of them will join the opposition. And that will mean more innocent bloodshed over time.

Such a calculation is certainly true in many cases. But it is unwarranted optimism to suppose that things will always work out so fortunately. Sometimes, for instance, terror movements do lose support when the surrounding civilian population is forced to take the hit. Injustice can sometimes prevent great harm. It can, on occasion, also produce great benefits. We can't tell the many stories of the criminals who have gotten away with it, because their happiness depends on their crimes remaining secret. In some of these cases, there is substantial benefit and little or no harm. Utilitarianism must approve of such actions.

A third reply to the problem of justice denies premise 1 of the Argument from Injustice. Those who offer this reply allow that well-being and justice sometimes conflict. But when they do, it is justice, and not well-being, that must take a backseat. Justice is only a part, not the whole, of morality. Of course it is important to respect people's rights, but that is because doing so is

usually optimific. When it isn't, rights must be sacrificed. So premise 1 of the Argument from Injustice is false.

Utilitarians who defend this strategy know that their recommendations will sometimes clash with conventional wisdom. But as we have seen, this is not a fatal flaw. Received opinion is not the final word in ethics. Utilitarianism began its life as a radical doctrine. That legacy remains.

Utilitarians can claim that our deepest moral convictions, including those that require us to do justice, reflect a utilitarian framework. We are socialized to tell the truth, protect the weak, keep our promises, and so on, *because doing so tends to be optimific*. But when it is not, utilitarians ask us to look at morality's ultimate standard, and to set aside our ordinary scruples in favor of the principle of utility.

Most of us agree that justice can sometimes be outweighed by other moral concerns. If, in a previous example, a legislator must authorize a minor injustice in order to pass an immensely beneficial spending bill, then morality gives the go-ahead. If you can administer CPR to a stricken passerby, and so save his life, then it is worth committing a minor injustice to do so. So justice may sometimes be sacrificed. But when? Utilitarians have an answer: whenever the results of doing so are optimific. If you don't like that answer, you need to supply a better principle that tells us when injustice is, and is not, permitted.

A fourth reply enables us to develop a closely related moral theory that deserves special mention here, because it promises to handle a number of objections to utilitarianism, while keeping much of its spirit. This is **rule consequentialism**—the view that *an action is morally right just because it is required by an optimific social rule*.

An optimific social rule is a rule that meets the following condition: if (nearly) everyone in a society were to accept it, then the results would be optimific.

The basic idea is this. Rather than determine an action's morality by asking about its results, we ask instead about whether the action conforms to a moral rule. This is a familiar model in ethics. Most moral theories operate this way. What distinguishes them from one another is their different claims about what makes something a moral rule. Rule consequentialists have a specific view about this. The moral rules are the optimific social rules.

To know whether a rule is an optimific social rule, follow these three steps:

1. Carefully describe the rule.
2. Imagine what a society would be like if just about everyone in it endorsed the rule.
3. Then ask this question: will that society be better off with this rule than with any competing rule?

If the answer to this question is *yes*, then this rule is an optimific social rule. If the answer is *no*, then it isn't an optimific social rule, and so is not a genuine moral rule.

Rule consequentialism will probably instruct professors to give their students the grades they deserve, rather than those they would like to have. It will condemn the actions of thieves, even if they don't get caught and their victims suffer in only minor ways. It will likely prohibit such practices as vicarious punishment. When we focus on what is optimific as a general policy, we repeatedly get advice that agrees with our notions of justice. Even rule consequentialists who reject the intrinsic value of justice, and insist that well-being is the only thing of ultimate value, will almost always defend policies that are just. That's because in the long run, and as a general matter, just *policies* maximize well-being, even if, in isolated cases, just *actions* do not.

Rule consequentialism also solves other problems with act utilitarianism. It supports our belief that morality permits a certain degree of partiality, because policies that allow

us to give preference to friends, loved ones, and fellow citizens will very often be highly beneficial.

Rule consequentialism can also say that certain actions are simply forbidden, even if they will sometimes achieve very good results. For instance, even if it would be optimific here and now to torture a prisoner, there may well be an optimific rule that forbids political torture. In most cases and over the long run, societies that ban torture may be much better off, in terms of both happiness and justice, than those that allow their officials to torture prisoners. If that is so, then torture is immoral—even if, in unusual cases, it yields real benefits.

So rule consequentialism has a lot going for it. And yet very few philosophers accept it. The reason was given over fifty years ago, by a prominent Australian philosopher, J. J. C. Smart.² In defending act utilitarianism, Smart accused rule consequentialists of irrational rule worship. That charge has stuck.

The basic worry is simple. Rule consequentialists demand that we obey moral rules, *even when we know that breaking them would yield better results*. But that is irrational, since in these cases, consequentialists know in advance that their ultimate goal (making the world the best place it can be) will not be fulfilled. It is irrational to knowingly defeat your own goals. Rule consequentialists do this whenever they issue a recommendation that differs from act utilitarianism.

Act utilitarianism demands that we always do what is optimific. So, by definition, whenever rule consequentialists give us different advice, we are required to act in a way that fails to yield the best results. Rule consequentialists would forbid torture and embezzlement and vicarious punishment—even when

specific instances of such action would be most beneficial. This is self-defeating, since a consequentialist's ultimate aim is to produce the best possible results.

No matter what your ultimate goal is, the rules that *generally* achieve that goal will sometimes fail to do so. If you know that you are in one of those exceptional situations, then why follow the rule? Suppose that justice, not happiness, is the ultimate value. Suppose, too, that justice would be best served if everyone were to follow a certain rule, such as one that prohibits tampering with evidence. But why follow that rule if you know that this time, unusually, breaking the rule will yield the most justice?

If the ultimate purpose of morality is to make the world a better place, then it is irrational to knowingly behave in ways that fail to do this. And yet that is what rule consequentialism sometimes requires. That is why most consequentialists have rejected it.

D. CONCLUSION

Consequentialism is a perennial favorite with moral philosophers. Its emphasis on impartiality, its moral flexibility, its inclusion of non-human animals within the moral community, its orientation to the future, and its emphasis on results have great appeal for many ethical thinkers.

But we have also seen that there are worries for consequentialism, and these are not easily solved. We usually admire impartiality but sometimes think that partiality is what morality demands. Consequentialism can require a degree of self-sacrifice that strikes many people as extreme. And it sometimes calls on us to commit injustice. We reviewed the four most prominent replies to this concern, but we saw that each of them encountered difficulties. It's natural, then, to turn our attention next to a view that places primary importance on doing justice: the moral theory of Immanuel Kant.

2. See J. J. C. Smart, "Extreme and Restricted Utilitarianism," *Philosophical Quarterly* 6 (1956): 344–354.

ESSENTIAL CONCEPTS

Absolute rule: a rule that may never permissibly be broken.

Act utilitarianism: The moral theory that says that an action is morally required just because it does more to improve overall well-being than any other action you could have done in the circumstances.

Consequentialism: The family of moral theories that say that an action or a policy is morally required just because it produces the best overall results.

Decision procedure: a method for reliably guiding our decisions, so that when we use it well, we make decisions as we ought to.

Intrinsically good: valuable in and of itself, and worth having for its own sake

Moral community: that group of individuals who are morally important in their own right and, as such, are owed a certain amount of respect. Membership in the moral community imposes a duty on everyone else to take one's needs seriously, for one's own sake.

Optimific: producing the best results.

Optimific social rule: a social rule which, if nearly everyone accepted it, would yield better results than any competing social rule.

Principle of utility: the central doctrine of act utilitarianism.

Rule consequentialism: the view that an action is morally right just because it is required by an optimific social rule.

Standard of rightness: a principle that tells us the conditions under which actions are morally right.

Supererogation: action that is "above and beyond the call of duty."

Vicarious punishment: punishment that targets innocent people as a way to deter the guilty.

DISCUSSION QUESTIONS

1. Most utilitarians think that sometimes people are not to blame for performing actions that are very wrong, and that sometimes people should not be praised for doing the right thing. Why do they think this? Do you agree?
 2. Utilitarians reject the existence of absolute moral rules (other than the principle of utility). Do you think that there are any absolute moral rules? If so, what are they, and how can their absolute status be defended against the utilitarian view that the ends justify the means?
 3. Is there any way of measuring how much happiness is brought about by an action? Do we have any method for comparing the happiness of two different people? If the answer to these questions is "no," is this a problem for utilitarianism?
 4. Critics claim that utilitarianism demands that we be saintly in our motivations. Explain this criticism and then discuss why you find it (im)plausible.
 5. If utilitarianism is correct, then we may be morally required to undertake substantial sacrifice for others. What limits on such sacrifice does the utilitarian favor? Are these limits acceptable?
 6. Utilitarianism requires us to be impartial. What does this amount to? In what sense does utilitarianism require that we treat all people equally? Is this a positive or a negative feature of the theory?
 7. Which utilitarian reply to the Argument from Injustice do you think is the most promising? Do you think that this reply is ultimately successful? Defend your answer.
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READING

Utilitarianism

John Stuart Mill

Though written over a hundred and fifty years ago in the form of a long pamphlet, Mill's *Utilitarianism* is the most influential presentation of the doctrine yet to appear. In this excerpt from its second chapter, Mill identifies the essential core of the moral theory, namely, its Greatest Happiness Principle: "actions are right in proportion as they tend to promote happiness, wrong as they tend to produce the reverse of happiness." Mill is keen to say that one's own happiness is no more important than another's—the utilitarian creed insists that a virtuous person will be concerned with the general happiness and align her own interests with those of the larger population to the extent possible.

The discussion here takes the form of replies to a series of objections; along the way, Mill takes the opportunity to identify positive attractions of the view. One objection is that utilitarianism demands too much of us by requiring that we always be motivated to promote the greater good. Mill replies by denying this and distinguishing between the standard of right action—the Greatest Happiness Principle—and the standard by which we assess people's motives and character. An act that yields only avoidable harm is wrong, even though the person who did it tried hard to do good. In such a case we need not blame the person, even though he acted immorally. Mill claims that only a small handful of people are in a position to do good on a large scale; as a result, most of us would do best not to ordinarily have the Greatest Happiness Principle as our primary motivation.

Indeed, rather than always ask ourselves which of our options will produce the greatest happiness, Mill thinks that we should rely on a battery of familiar moral rules to guide our actions and in most cases don't even need to reflect much in order to know which of our actions is the right one. We will do more good by relying on these familiar rules (e.g., don't lie, don't kill others, keep your promises) than on frequent, direct calculations of utility. But these rules are themselves justified because following them usually leads to increases in happiness or decreases in unhappiness. Further, these rules will sometimes conflict; when they do, Mill touts as a significant advantage of utilitarianism that its Greatest Happiness Principle provides a principled basis for determining how to resolve such conflicts.

The creed which accepts as the foundation of morals, Utility, or the Greatest Happiness Principle, holds that actions are right in proportion as they tend to promote happiness, wrong as they tend to produce the reverse of happiness. By happiness is intended

pleasure, and the absence of pain; by unhappiness, pain, and the privation of pleasure. To give a clear view of the moral standard set up by the theory, much more requires to be said; in particular, what things it includes in the ideas of pain and pleasure; and to what extent this is left an open question. But these supplementary explanations do not affect

From John Stuart Mill, *Utilitarianism* (1861).

the theory of life on which this theory of morality is grounded—namely, that pleasure, and freedom from pain, are the only things desirable as ends; and that all desirable things (which are as numerous in the utilitarian as in any other scheme) are desirable either for the pleasure inherent in themselves, or as means to the promotion of pleasure and the prevention of pain. . . .

[T]he happiness which forms the utilitarian standard of what is right in conduct, is not the agent's own happiness, but that of all concerned. As between his own happiness and that of others, utilitarianism requires him to be as strictly impartial as a disinterested and benevolent spectator. In the golden rule of Jesus of Nazareth, we read the complete spirit of the ethics of utility. To do as you would be done by, and to love your neighbour as yourself, constitute the ideal perfection of utilitarian morality. As the means of making the nearest approach to this ideal, utility would enjoin, first, that laws and social arrangements should place the happiness, or (as speaking practically it may be called) the interest, of every individual, as nearly as possible in harmony with the interest of the whole; and secondly, that education and opinion, which have so vast a power over human character, should so use that power as to establish in the mind of every individual an indissoluble association between his own happiness and the good of the whole; especially between his own happiness and the practice of such modes of conduct, negative and positive, as regard for the universal happiness prescribes; so that not only may he be unable to conceive the possibility of happiness to himself, consistently with conduct opposed to the general good, but also that a direct impulse to promote the general good may be in every individual one of the habitual motives of action, and the sentiments connected therewith may fill a large and prominent place in every human being's sentient existence. If the impugners of the utilitarian morality represented it to their own minds in this, its true character, I know not what recommendation possessed by any other morality they could possibly affirm to be wanting to it; what more beautiful or more exalted developments of human nature any other ethical system can be supposed to foster, or what springs of action, not accessible to

the utilitarian, such systems rely on for giving effect to their mandates.

The objectors to utilitarianism cannot always be charged with representing it in a discreditable light. On the contrary, those among them who entertain anything like a just idea of its disinterested character, sometimes find fault with its standard as being too high for humanity. They say it is exacting too much to require that people shall always act from the inducement of promoting the general interests of society. But this is to mistake the very meaning of a standard of morals, and confound the rule of action with the motive of it. It is the business of ethics to tell us what are our duties, or by what test we may know them; but no system of ethics requires that the sole motive of all we do shall be a feeling of duty; on the contrary, ninety-nine hundredths of all our actions are done from other motives, and rightly so done, if the rule of duty does not condemn them. It is the more unjust to utilitarianism that this particular misapprehension should be made a ground of objection to it, inasmuch as utilitarian moralists have gone beyond almost all others in affirming that the motive has nothing to do with the morality of the action, though much with the worth of the agent. He who saves a fellow creature from drowning does what is morally right, whether his motive be duty, or the hope of being paid for his trouble; he who betrays the friend that trusts him, is guilty of a crime, even if his object be to serve another friend to whom he is under greater obligations.

But to speak only of actions done from the motive of duty, and in direct obedience to principle: it is a misapprehension of the utilitarian mode of thought, to conceive it as implying that people should fix their minds upon so wide a generality as the world, or society at large. The great majority of good actions are intended not for the benefit of the world, but for that of individuals, of which the good of the world is made up; and the thoughts of the most virtuous man need not on these occasions travel beyond the particular persons concerned, except so far as is necessary to assure himself that in benefiting them he is not violating the rights, that is, the legitimate and authorised expectations, of any one else. The multiplication of happiness is, according to the utilitarian ethics, the object of

virtue: the occasions on which any person (except one in a thousand) has it in his power to do this on an extended scale, in other words to be a public benefactor, are but exceptional; and on these occasions alone is he called on to consider public utility; in every other case, private utility, the interest or happiness of some few persons, is all he has to attend to. Those alone the influence of whose actions extends to society in general, need concern themselves habitually about so large an object. In the case of abstinences indeed—of things which people forbear to do from moral considerations, though the consequences in the particular case might be beneficial—it would be unworthy of an intelligent agent not to be consciously aware that the action is of a class which, if practised generally, would be generally injurious, and that this is the ground of the obligation to abstain from it. The amount of regard for the public interest implied in this recognition is no greater than is demanded by every system of morals, for they all enjoin to abstain from whatever is manifestly pernicious to society.

The same considerations dispose of another reproach against the doctrine of utility, founded on a still grosser misconception of the purpose of a standard of morality, and of the very meaning of the words right and wrong. It is often affirmed that utilitarianism renders men cold and unsympathising; that it chills their moral feelings towards individuals; that it makes them regard only the dry and hard consideration of the consequences of actions, not taking into their moral estimate the qualities from which those actions emanate. If the assertion means that they do not allow their judgment respecting the rightness or wrongness of an action to be influenced by their opinion of the qualities of the person who does it, this is a complaint not against utilitarianism, but against having any standard of morality at all; for certainly no known ethical standard decides an action to be good or bad because it is done by a good or a bad man, still less because done by an amiable, a brave, or a benevolent man, or the contrary. These considerations are relevant, not to the estimation of actions, but of persons; and there is nothing in the utilitarian theory inconsistent with the fact that there are other things which interest us in persons besides the rightness and

wrongness of their actions. The Stoics, indeed, with the paradoxical misuse of language which was part of their system, and by which they strove to raise themselves above all concern about anything but virtue, were fond of saying that he who has that has everything; that he, and only he, is rich, is beautiful, is a king. But no claim of this description is made for the virtuous man by the utilitarian doctrine. Utilitarians are quite aware that there are other desirable possessions and qualities besides virtue, and are perfectly willing to allow to all of them their full worth. They are also aware that a right action does not necessarily indicate a virtuous character, and that actions which are blamable, often proceed from qualities entitled to praise. When this is apparent in any particular case, it modifies their estimation, not certainly of the act, but of the agent. I grant that they are, notwithstanding, of opinion, that in the long run the best proof of a good character is good actions; and resolutely refuse to consider any mental disposition as good, of which the predominant tendency is to produce bad conduct. This makes them unpopular with many people; but it is an unpopularity which they must share with every one who regards the distinction between right and wrong in a serious light; and the reproach is not one which a conscientious utilitarian need be anxious to repel.

If no more be meant by the objection than that many utilitarians look on the morality of actions, as measured by the utilitarian standard, with too exclusive a regard, and do not lay sufficient stress upon the other beauties of character which go towards making a human being lovable or admirable, this may be admitted. Utilitarians who have cultivated their moral feelings, but not their sympathies nor their artistic perceptions, do fall into this mistake; and so do all other moralists under the same conditions. What can be said in excuse for other moralists is equally available for them, namely, that, if there is to be any error, it is better that it should be on that side. As a matter of fact, we may affirm that among utilitarians as among adherents of other systems, there is every imaginable degree of rigidity and of laxity in the application of their standard: some are even puritanically rigorous, while others are as indulgent as can possibly be desired by sinner or by sentimentalist.

But on the whole, a doctrine which brings prominently forward the interest that mankind have in the repression and prevention of conduct which violates the moral law, is likely to be inferior to no other in turning the sanctions of opinion against such violations. It is true, the question, What does violate the moral law? is one on which those who recognise different standards of morality are likely now and then to differ. But difference of opinion on moral questions was not first introduced into the world by utilitarianism, while that doctrine does supply, if not always an easy, at all events a tangible and intelligible mode of deciding such differences.

It may not be superfluous to notice a few more of the common misapprehensions of utilitarian ethics. . . . We not uncommonly hear the doctrine of utility inveighed against as a godless doctrine. If it be necessary to say anything at all against so mere an assumption, we may say that the question depends upon what idea we have formed of the moral character of the Deity. If it be a true belief that God desires, above all things, the happiness of his creatures, and that this was his purpose in their creation, utility is not only not a godless doctrine, but more profoundly religious than any other. If it be meant that utilitarianism does not recognise the revealed will of God as the supreme law of morals, I answer, that a utilitarian who believes in the perfect goodness and wisdom of God, necessarily believes that whatever God has thought fit to reveal on the subject of morals, must fulfil the requirements of utility in a supreme degree. But others besides utilitarians have been of opinion that the Christian revelation was intended, and is fitted, to inform the hearts and minds of mankind with a spirit which should enable them to find for themselves what is right, and incline them to do it when found, rather than to tell them, except in a very general way, what it is; and that we need a doctrine of ethics, carefully followed out, to interpret to us the will of God. Whether this opinion is correct or not, it is superfluous here to discuss; since whatever aid religion, either natural or revealed, can afford to ethical investigation, is as open to the utilitarian moralist as to any other. He can use it as the testimony of God to the usefulness or hurtfulness of any given course of action, by as good a right as others can use it for the indication

of a transcendental law, having no connection with usefulness or with happiness.

Again, Utility is often summarily stigmatised as an immoral doctrine by giving it the name of Expediency, and taking advantage of the popular use of that term to contrast it with Principle. But the Expedient, in the sense in which it is opposed to the Right, generally means that which is expedient for the particular interest of the agent himself; as when a minister sacrifices the interests of his country to keep himself in place. When it means anything better than this, it means that which is expedient for some immediate object, some temporary purpose, but which violates a rule whose observance is expedient in a much higher degree. The Expedient, in this sense, instead of being the same thing with the useful, is a branch of the hurtful. Thus, it would often be expedient, for the purpose of getting over some momentary embarrassment, or attaining some object immediately useful to ourselves or others, to tell a lie. But inasmuch as the cultivation in ourselves of a sensitive feeling on the subject of veracity, is one of the most useful, and the enfeeblement of that feeling one of the most hurtful, things to which our conduct can be instrumental; and inasmuch as any, even unintentional, deviation from truth, does that much towards weakening the trustworthiness of human assertion, which is not only the principal support of all present social well-being, but the insufficiency of which does more than any one thing that can be named to keep back civilisation, virtue, everything on which human happiness on the largest scale depends; we feel that the violation, for a present advantage, of a rule of such transcendent expediency, is not expedient, and that he who, for the sake of a convenience to himself or to some other individual, does what depends on him to deprive mankind of the good, and inflict upon them the evil, involved in the greater or less reliance which they can place in each other's word, acts the part of one of their worst enemies. Yet that even this rule, sacred as it is, admits of possible exceptions, is acknowledged by all moralists; the chief of which is when the withholding of some fact (as of information from a malefactor, or of bad news from a person dangerously ill) would save

an individual (especially an individual other than oneself) from great and unmerited evil, and when the withholding can only be effected by denial. But in order that the exception may not extend itself beyond the need, and may have the least possible effect in weakening reliance on veracity, it ought to be recognised, and, if possible, its limits defined; and if the principle of utility is good for anything, it must be good for weighing these conflicting utilities against one another, and marking out the region within which one or the other preponderates.

Again, defenders of utility often find themselves called upon to reply to such objections as this—that there is not time, previous to action, for calculating and weighing the effects of any line of conduct on the general happiness. This is exactly as if any one were to say that it is impossible to guide our conduct by Christianity, because there is not time, on every occasion on which anything has to be done, to read through the Old and New Testaments. The answer to the objection is, that there has been ample time, namely, the whole past duration of the human species. During all that time, mankind have been learning by experience the tendencies of actions; on which experience all the prudence, as well as all the morality of life, are dependent. People talk as if the commencement of this course of experience had hitherto been put off, and as if, at the moment when some man feels tempted to meddle with the property or life of another, he had to begin considering for the first time whether murder and theft are injurious to human happiness. Even then I do not think that he would find the question very puzzling; but, at all events, the matter is now done to his hand.

It is truly a whimsical supposition that, if mankind were agreed in considering utility to be the test of morality, they would remain without any agreement as to what is useful, and would take no measures for having their notions on the subject taught to the young, and enforced by law and opinion. There is no difficulty in proving any ethical standard whatever to work ill, if we suppose universal idiocy to be conjoined with it; but on any hypothesis short of that, mankind must by this time have acquired positive beliefs as to the

effects of some actions on their happiness; and the beliefs which have thus come down are the rules of morality for the multitude, and for the philosopher until he has succeeded in finding better. That philosophers might easily do this, even now, on many subjects; that the received code of ethics is by no means of divine right; and that mankind have still much to learn as to the effects of actions on the general happiness, I admit, or rather, earnestly maintain. The corollaries from the principle of utility, like the precepts of every practical art, admit of indefinite improvement, and, in a progressive state of the human mind, their improvement is perpetually going on.

But to consider the rules of morality as improvable, is one thing; to pass over the intermediate generalisations entirely, and endeavour to test each individual action directly by the first principle, is another. It is a strange notion that the acknowledgment of a first principle is inconsistent with the admission of secondary ones. To inform a traveller respecting the place of his ultimate destination, is not to forbid the use of landmarks and direction-posts on the way. The proposition that happiness is the end and aim of morality, does not mean that no road ought to be laid down to that goal, or that persons going thither should not be advised to take one direction rather than another. Men really ought to leave off talking a kind of nonsense on this subject, which they would neither talk nor listen to on other matters of practical concernment. Nobody argues that the art of navigation is not founded on astronomy, because sailors cannot wait to calculate the Nautical Almanack. Being rational creatures, they go to sea with it ready calculated; and all rational creatures go out upon the sea of life with their minds made up on the common questions of right and wrong, as well as on many of the far more difficult questions of wise and foolish. And this, as long as foresight is a human quality, it is to be presumed they will continue to do. Whatever we adopt as the fundamental principle of morality, we require subordinate principles to apply it by; the impossibility of doing without them, being common to all systems, can afford no argument against any one in particular; but gravely to argue as if no such secondary principles could be had, and as if mankind

had remained till now, and always must remain, without drawing any general conclusions from the experience of human life, is as high a pitch, I think, as absurdity has ever reached in philosophical controversy.

The remainder of the stock arguments against utilitarianism mostly consist in laying to its charge the common infirmities of human nature, and the general difficulties which embarrass conscientious persons in shaping their course through life. We are told that a utilitarian will be apt to make his own particular case an exception to moral rules, and, when under temptation, will see a utility in the breach of a rule, greater than he will see in its observance. But is utility the only creed which is able to furnish us with excuses for evil doing, and means of cheating our own conscience? They are afforded in abundance by all doctrines which recognise as a fact in morals the existence of conflicting considerations; which all doctrines do, that have been believed by sane persons. It is not the fault of any creed, but of the complicated nature of human affairs, that rules of conduct cannot be so framed as to require no exceptions, and that hardly any kind of action can safely be laid down as either always obligatory or always condemnable. There is no ethical creed which does not temper the rigidity of its laws, by giving a certain latitude, under the moral responsibility of the agent, for accommodation to peculiarities of circumstances; and under every creed, at the opening thus made, self-deception and dishonest casuistry get in. There exists no moral system under which there do not arise unequivocal cases of conflicting obligation. These are the real difficulties, the knotty points both in the theory of ethics, and in the conscientious guidance of personal conduct. They are overcome practically, with greater or with less success, according to the intellect and virtue of the individual; but it can hardly be pretended that any one will be the less qualified for dealing with them, from possessing an ultimate standard to which conflicting rights and duties can be referred. If utility is the ultimate source of moral obligations, utility may be invoked to decide between them when their demands are incompatible. Though the application of the standard may be difficult, it is better than none at all: while in other

systems, the moral laws all claiming independent authority, there is no common umpire entitled to interfere between them; their claims to precedence one over another rest on little better than sophistry, and unless determined, as they generally are, by the unacknowledged influence of considerations of utility, afford a free scope for the action of personal desires and partialities. We must remember that only in these cases of conflict between secondary principles is it requisite that first principles should be appealed to. There is no case of moral obligation in which some secondary principle is not involved; and if only one, there can seldom be any real doubt which one it is, in the mind of any person by whom the principle itself is recognised.

John Stuart Mill: Utilitarianism

1. Utilitarianism claims that my happiness is no more important than yours. This kind of impartiality seems highly appealing. But this also appears to prohibit us from giving ourselves or our family priority over the interests of others. Is this appearance correct? Can utilitarianism allow for partiality to oneself or one's family?
2. Mill claims that virtuous people will rarely have the Greatest Happiness Principle in mind when acting. Why does he say this? Is his claim plausible? And is it what a utilitarian really should say?
3. Mill believes that the motives that prompt an action are irrelevant to that action's morality. Is this claim plausible? Why or why not?
4. Many critics of utilitarianism claim that the theory requires that we sacrifice too much for others. Mill counters by saying that only a very few people are in a position to do much good for many others; as a result, most of us are not required to focus our efforts in ways that require significant self-sacrifice. Is Mill's view too rosy, especially now that we are so easily able to learn of how unfortunate others are and are easily able to give to charities that can help improve the lives of those who are less well off than we are?
5. Some have argued that utilitarianism is a godless doctrine. What is Mill's reply to this? Do you find it plausible?